

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

FOURTH JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” or “Respondent”) (NBG, together with ONE, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

As previously reported in the Parties’ June 12, 2026 joint report, Complainant substantially completed its document production on May 29, 2026. Respondent served its first production of 1,062 documents (roughly 2,100 pages) on May 8, 2026. Respondent made a second rolling production of 687 documents (roughly 3,648 pages) on June 26, 2026. Respondent made a third rolling production of 966 documents (roughly 5,931 pages) on July 8, 2026.

Complainant is in the process of reviewing Respondent’s fourth production of 34,448 documents consisting of 118,276 total pages of documents served on July 28, 2026—which comprises approximately ninety-three percent of the total documents that Respondent has produced in this proceeding. Complainant has provided Respondent with a preliminary list of seven deponents that it seeks to depose, subject to supplementation based upon a review of the documents produced by ONE. The parties met and conferred on scheduling depositions on July

30th, 2026. During the meet-and-confer, Complainant discussed scheduling matters for depositions at a high level, including the need for NBG to review ONE's recent production, NBG former employee witnesses' availability, the ongoing deposition schedule in the severed NBG proceedings against other carriers, and the fact that these two issues may create scheduling conflicts under the present Scheduling Order. Complainant is making the utmost effort to meet the deadlines in the Presiding Officer's Second Amended Scheduling Order and well notes the Presiding Officer's prior warnings regarding further requests for extensions. For transparency and context, below is a calendar for the month of August showing depositions in the severed proceedings that are currently scheduled (or scheduled pending a final confirmation).

August 2026 NBG Depositions in *NBG v. OOCL*, FMC Dkt. No. 25-31 (in yellow) and *NBG v. Yang Ming and Evergreen*, FMC Dkt. No. 25-02 (in orange), or both (in red):

SUN	MON	TUE	WED	THU	FRI	SAT
						01
02	03	04	05	06	07	08
		Deposition	Deposition			
09	10	11	12	13	14	15
Deposition (PM portion)	Deposition (AM portion)	Deposition & partial deposition	Two partial depositions	Deposition & partial deposition		
16	17	18	19	20	21	22
	Tentative deposition	Deposition	Tentative deposition	Tentative deposition	Tentative deposition	
23	24	25	26	27	28	29
	Tentative deposition		Tentative deposition	Tentative deposition	Deposition	

SUN	MON	TUE	WED	THU	FRI	SAT
30	31					

As stated above, since the last joint status report Respondent, in compliance with the current Scheduling Order served rolling productions of documents on June 26, July 8 and July 28, 2026. While there will be additional productions of AEO documents requiring redactions, Respondent's July 28, 2026, production substantially completes Respondents' productions. Respondent continues to review Complainant's productions of documents which amount to a total of 66,445 documents and approximately 169,650 pages.

Respondent has identified ten potential NBG witnesses, the names of which have been communicated to Complainant in advance of the filing of this joint report. Respondent's counsel is still working with ONE to ascertain the exact involvement of the potential witnesses and verify if such list can be reduced. Respondent is on notice from Complainant that since none of the potential witnesses are currently employed by NBG subpoenas will be needed to request their deposition. Complainant and Respondent are cooperating so that the process of arranging the deposition by subpoenas will be as smooth as possible. That being said, notwithstanding the parties best efforts, the arrangements are logistically more complex than in a normal situation since Complainant has no control over the witnesses and other carriers in other FMC matters also want to depose the same former NBG employees.

Dated: August 4, 2026

Respectfully submitted,

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